

Person Filing	Dana Marie Whitfield
Address (if not protected)	417 North Cordova Avenue
City, State, Zip Code	Tucson, AZ 85705
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Representing ☒ Self or ☐ Attorney for:	
Attorney Bar Number	

For Clerk's Use Only

PIMA COUNTY SUPERIOR

COURT OF ARIZONA

IN

PIMA

COUNTY

STATE OF ARIZONA

Case Number: CR2016-004821

-vs-

Dana Marie Whitfield

Defendant (FIRST, MI, LAST)

OR if no charges were filed:

In Re the Matter of:

Name (FIRST, MI, LAST)

PETITION TO SEAL CRIMINAL CASE RECORDS

(ARS § 13-911)

☐ Amended (corrected) petition

Select if you are amending an existing petition. Include existing case number above.

Read ARS § 13-911 in its entirety before completing this petition. This petition is intended to help those who are seeking to seal a criminal case record under ARS § 13-911 and refers solely to the records that exist under the control of the courts, Department of Public Safety, prosecutors' offices, and law enforcement agencies. Any case record that was published or distributed prior to sealing may still be accessible and may not be impacted by the granting of an order to seal case records.

NOTE: Items marked with an asterisk (*) are required fields.

Pursuant to ARS § 13-911, Petitioner hereby petitions the court to order the sealing of the following criminal case records related to Petitioner, as indicated in this petition. *(Check only those that apply)*

- ☐ Arrest records of an arrest occurring on or about _____ by the following law enforcement agency: _____.
- ☐ Charging documents created by the following prosecuting agency *(Do not check this box if no charges were filed)*: _____.
- ☒ All records relating to the eligible charge(s) in court case number: CR2016-004821.

As grounds for this petition, Petitioner states as follows:

SECTION I. CASE RECORDS RELATED TO A CRIMINAL OFFENSE

1. PETITIONER'S INFORMATION (required)*

- a. Petitioner's name:* Dana Marie Whitfield
- b. Petitioner's address:* 417 North Cordova Avenue
- c. Date of birth:* 03/14/1988
- d. Email address:* dana.whitfield@example.org
- e. Name at the time of arrest, if not the same as above:* Dana Marie Alvarez

2. CASE RECORD INFORMATION (required)*

- a. What were you charged with or the offense for which you were arrested if no charges were filed: Possession of a dangerous drug, A.R.S. 13-3407(A)(1), a class 4 felony
- b. Court that adjudicated the charge(s) or if charges were not filed, the court that would have adjudicated the charge(s): PIMA COUNTY SUPERIOR
- c. Court case number if charge(s) were filed: CR2016-004821
1. Count I: Possession of a dangerous drug, A.R.S. 13-3407(A)(1), class 4 felony
 2. Count II: Possession of drug paraphernalia, A.R.S. 13-3415(A), class 6 felony
 3. Count III: Possession of marijuana, A.R.S. 13-3405(A)(1), class 6 felony
 4. Count IV: Criminal damage, A.R.S. 13-1602(A)(1), class 2 misdemeanour
- ☒ Additional counts continue on a separate page.
- d. If no charges were filed, did you have an initial appearance? ☐ Yes ☐ No.
If you marked "yes," was your initial appearance in this court? ☐ Yes ☐ No.

IMPORTANT: If no charges were filed but you had an initial appearance, you MUST file in the court where you had your initial appearance. If you were arrested but no initial appearance was held, you must file in the superior court in the county where you were arrested.

3. ADDITIONAL CASE RECORD INFORMATION (if known)

- a. Location of arrest: _____
- b. Name of the arresting agency: _____
- c. Date of arrest: _____
- d. Name of the prosecuting agency if charges were filed: _____
- e. Name of the justice court and the justice court case number if the case was initially filed in a justice court but was transferred to the superior court. _____

4. DESCRIBE YOUR SITUATION (required)*

You must check at least one box that applies to your situation.

- ☐ I was arrested for a criminal offense and no charges were filed. **If checked, please go to Section III.**
- ☐ I was charged with one or more criminal offenses and the charge(s) were subsequently dismissed or resulted in a not guilty verdict at trial. A dismissal or not guilty verdict was entered on _____.
- ☒ I was charged with a criminal offense and a judgment of guilt was entered on 09/22/2017.

SECTION II. SENTENCE COMPLIANCE

1. I have satisfied **all required monetary terms of the sentence**, including outstanding fines, fees, restitution, or other court-ordered financial obligations.*
☒ Yes ☐ No ☐ N/A.
2. I have completed **all other terms of the sentence**, such as incarceration, probation, employment, classes, drug/alcohol testing, or other requirements.*
☒ Yes ☐ No ☐ N/A.
3. I have received an absolute discharge from the Arizona Department of Corrections.*
☐ Yes ☐ No ☐ N/A. (If you checked “yes,” it is **strongly encouraged** that you attach a certificate of absolute discharge.)
4. I have been discharged from probation.*
☐ Yes ☐ No ☐ N/A. (If you checked “yes,” it is **strongly encouraged** that you attach a copy of your order of discharge.)

You cannot file this petition if you checked “no” to question 1, 2, 3, or 4 above.

SECTION III. PRIOR SEALING OF RECORD(S)

1. Have you previously filed a petition to seal case records under ARS § 13-911 in this case?

☐ Yes ☐ No.

If yes, what was the date of your last petition?

2. Have you had case records sealed under ARS § 13-911 in a previous case?

☐ Yes ☒ No.

If yes, what was the date you completed the non-monetary conditions of probation or sentence and were discharged by the court?

SECTION IV. OTHER INFORMATION FOR THE COURT

1. If you are filing this petition to have a conviction sealed, have you been convicted of any other offense since the conviction for which you are asking the court to seal records?

☐ Yes ☐ No ☐ N/A.

2. Are there any pending charges that you are aware of that have been filed against you?

☐ Yes ☒ No ☐ Unknown.

- a. If you have additional pending charges, please provide:

i. Jurisdiction: _____

ii. Charges filed: _____

iii. Date of the charges:

3. Unless the petitioner, prosecutor, or victim requests a hearing, the court may grant or deny a petition without a hearing. Do you request a hearing? ☐ Yes ☐ No.

4. Is there anything else you would like the court to consider regarding this petition?

Sealing this record is in my best interests and consistent with public safety. I completed every term of my sentence in 2020, I have had no contact with law enforcement since, and I have held the same job for four years. The record blocks me from the state licence my employer now requires.

5. ☐ Attached is other pertinent documentation (non-originals). List attached documents:

DECLARATIONS AND ACKNOWLEDGEMENTS

I declare under penalty of perjury that the information I have provided in this petition and any attachments are true and correct to the best of my knowledge.

I understand that this petition may be dismissed if the information I have provided is insufficient. I also understand that this petition may be denied if information in this petition is found to be inaccurate.

Petitioner / Petitioner's Attorney Signature		Date	
Printed Name:	Dana Marie Whitfield		
Address	417 North Cordova Avenue		
City, State, Zip Code	Tucson, AZ 85705		

NOTICE

You must notify the court of any new charges that are filed against you after this petition is filed, regardless of state or jurisdiction.

If you filed an appeal from a limited jurisdiction court regarding the charges that you seek to have sealed, you must also file a petition in superior court if you want those records sealed.